

Court No. - 40

Case :- WRIT - C No. - 36271 of 2022

Petitioner :- Bhagvan Yadav @ Bhagvan Singh Yadav

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Ram Singh Yadav, Rohit Kumar Singh

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Vivek Kumar Singh, J.

Heard learned counsel for the petitioner, learned Standing Counsel for State functionaries and Sri Udit Chandra, learned counsel for respondent Corporation.

The petitioner has preferred this writ petition challenging a recovery citation dated 17.10.2021 issued by the Tehsildar, Kasimabad, Ghazipur and recovery certificate dated 22.10.2020 by the Executive Engineer, Electricity Distribution Division - I, Uttar Pradesh Power Corporation Limited, Ghazipur.

Sri Chandra, learned counsel appearing for the Corporation raised a preliminary objection regarding maintainability of the present writ petition. He submits that since the present matter relates to theft and unauthorized use of electricity, the petitioner has an efficacious remedy to file an appeal under Provision 6.8 of the Uttar Pradesh Electricity Supply Code, 2005.

Uttar Pradesh Electricity Supply Code, 2005 is a self contained Act and a full-fledged mechanism is provided therein. Once objection is being raised, we have occasioned to peruse the record and found that the petitioner has an efficacious remedy to take recourse under Provision 6.8 of the Uttar Pradesh Electricity Code, 2005. A week's time is granted to the petitioner to take recourse of the remedy available to him under the said provision. The Court hopes and trusts that the competent authority shall proceed with the matter strictly in accordance with law.

With the aforesaid observations and leave, the present writ petition stands disposed of.

Order Date :- 2.1.2023

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Order on Civil Misc. Correction Application No.2 of 2023

Heard learned counsel for the parties and perused the record.

The instant application has been moved seeking correction in the order of this Court dated 2.1.2023.

The correction application is allowed.

The order dated 2.1.2023 is corrected. In the fourth line of the third paragraph of the order dated 2.1.2023, the sentence "***file an appeal under provision***" is substituted by the sentence "***press the relief under 6.8 of the Electricity Supply Code***".

This order shall be treated as part and parcel of the order dated 16.2.2023.

Order Date :- 12.5.2023

Anil K. Sharma